United States Government Accountability Office



Report to Congressional Requesters

April 2024

SOUTHWEST BORDER

Additional Guidance and Monitoring Needed to Improve CBP's Handling of Personal Property

GAO-24-106540

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Additional Guidance and Monitoring Needed to Improve CBP's Handling of Personal Property

GAO Highlights

Highlights of GAO-24-106540, a report to congressional requesters

Why GAO Did This Study

In fiscal year 2023, the Department of Homeland Security's CBP encountered nearly 2.5 million individuals at the southwest border. CBP holds individuals in short-term custody in holding facilities located along the border. When individuals enter short-term custody, CBP personnel must search, collect, store, and transfer or return their personal property. Property deemed to be contraband or hazardous is to be discarded. Individuals and representatives from nongovernmental organizations have raised concerns about CBP personnel not returning or improperly discarding personal property of individuals in custody along the southwest border.

GAO was asked to review CBP's policies and procedures regarding the handling of personal property. Among other things, this report assesses the extent to which CBP has developed and implemented policies and procedures for handling personal property. GAO analyzed policies and procedures for handling personal property. GAO also interviewed officials and conducted site visits to 16 CBP facilities in Arizona, California, and Texas.

What GAO Recommends

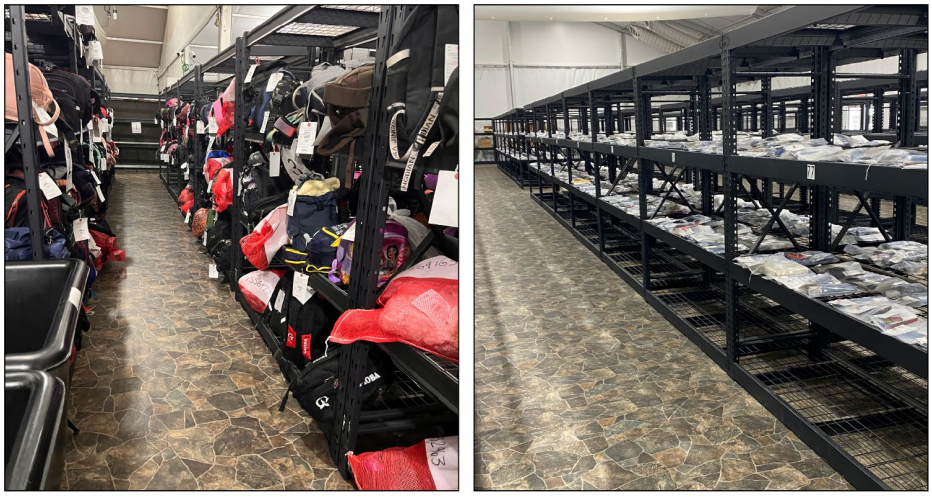
GAO is making three recommendations to CBP. These include that Border Patrol issue clarifying guidance for the handling of personal property and develop a mechanism to monitor implementation of this guidance, and that CBP develop and provide to individuals written instructions regarding property retrieval after their release from custody. DHS concurred with the recommendations.

View GAO-24-106540. For more information, contact Rebecca Gambler at (202) 512-8777 or Gamblerr@gao.gov.

What GAO Found

U.S. Customs and Border Protection (CBP) and its components—U.S. Border Patrol and the Office of Field Operations—have policies and procedures for how its personnel are to handle the personal property of individuals held in custody, and the components have taken action to implement this guidance. For example, GAO observed CBP personnel searching and storing individuals' personal property at short-term holding locations. However, GAO found that Border Patrol locations interpret the guidance differently, including definitions of health hazards and the amount and type of property field locations should collect and store.

Property Storage Rooms at Two Border Patrol Facilities, July and September 2023



Source: GAO. | GAO-24-106540

Note: These photographs illustrate the amount of personal property stored in storage rooms at the two facilities at the time of our visits. The photo on the left is of a facility that did not limit the amount of personal property an individual may store, whereas the photo on the right is of a facility that limits personal property.

According to Border Patrol headquarters officials, field locations interpret the guidance differently because it does not define key terms and concepts. Border Patrol headquarters also does not monitor implementation of guidance at the field level. By issuing clarifying guidance on handling personal property and developing and implementing a mechanism to monitor its implementation, Border Patrol would be better positioned to ensure personal property is handled consistent with agency guidance.

In addition, CBP policies and procedures state that individuals are to be notified of CBP's process for claiming personal property upon release from custody. GAO found that Border Patrol and the Office of Field Operations field locations do not consistently communicate this information to individuals. By providing written instructions, CBP would be better positioned to communicate procedures to individuals released from custody to better allow them to retrieve their property.

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Abbreviations

CBP	U.S. Customs and Border Protection
DHS	Department of Homeland Security
OFO	Office of Field Operations
TEDS	National Standards on Transport, Escort, Detention, and Search

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U.S. GOVERNMENT ACCOUNTABILITY OFFICE
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Congressional Requesters

U.S. Customs and Border Protection (CBP), within the Department of Homeland Security (DHS), is charged with a dual mission of facilitating travel and trade while also keeping terrorists and their weapons, criminals and their contraband, and inadmissible individuals out of the country.[1] According to CBP data, in fiscal year 2023, CBP encountered nearly 2.5 million individuals at the southwest border, more than five times the number encountered in fiscal year 2020. Within CBP, the Office of Field Operations (OFO) is responsible for operating ports of entry through which travelers are inspected for admission to the U.S., and U.S. Border Patrol is responsible for patrolling the areas between ports of entry to prevent individuals and goods from entering the U.S. illegally. After inspecting an individual for admissibility into the U.S. or while making an apprehension between ports of entry, OFO and Border Patrol may hold individuals in short-term custody in holding facilities located at OFO ports of entry, Border Patrol stations, and other locations. If placed into short-term custody, CBP personnel must inventory, collect, store, and transfer or return the personal belongings of those individuals. Individuals and representatives from nongovernmental organizations have raised concerns about CBP personnel not returning or improperly discarding personal property of individuals in custody along the southwest border.

We have previously reported on DHS's detention of individuals in short-term custody, DHS's processing of family units arriving at the southwest border, and CBP's short-term custody standards.[2] In those reports, we made 12 recommendations to DHS and CBP to strengthen assessments of time in custody data for individuals in holding facilities, controls over the collection and recording of information on family units processed at

[1]The term "inadmissible" means that a foreign national may not be admitted into the U.S. for various health-related, criminal, or other reasons, and such an individual is removable, under 8 U.S.C. § 1182 (statutory grounds of inadmissibility and related provisions). See related "deportability" provisions, 8 U.S.C. § 1227.

[2]GAO, *Immigration Detention: Additional Actions Needed to Strengthen DHS Management of Short-Term Holding Facilities,* GAO-16-514 (Washington, D.C.: May 26, 2016); *Southwest Border: Actions Needed to Improve DHS Processing of Families and Coordination between DHS and HHS,* GAO-20-245 (Washington, D.C.: Feb. 19, 2020); and *Southwest Border: CBP Oversees Short-Term Custody Standards, but Border Patrol Could Better Monitor Care of At-Risk Individuals,* GAO-22-105321 (Washington, D.C.: Sept. 28, 2022).

the southwest border, and welfare check requirements for at-risk populations, among other things.[3]

You asked us to review CBP's activities, policies, and procedures regarding the handling of personal property belonging to individuals in its custody. This report (1) assesses the extent to which CBP has developed and implemented policies and procedures for handling personal property and (2) describes DHS mechanisms for receiving and addressing complaints regarding the handling of personal property in CBP facilities along the southwest border.[4]

To address both objectives, we visited a nongeneralizable sample of five Border Patrol sectors and four OFO ports of entry in Arizona, California, and Texas.[5] We selected the Border Patrol sectors based on several factors, such as a variety in the number and type of short-term holding facilities within the sector, geographical location, both high and low numbers of apprehensions, and the existence or lack of sector-level policies for handling individuals' personal property. We selected OFO ports of entry with the largest number of inadmissible noncitizens encountered in our selected Border Patrol sectors. During the site visits, we observed the handling of personal property at 12 Border Patrol short-term holding facilities within the five sectors and four OFO ports of entry.[6]

We also interviewed officials at each location to discuss property handling and mechanisms individuals use to make complaints. The information we obtained from our site visits cannot be generalized to all facilities and

[3]DHS and CBP have implemented some of these recommendations and have actions planned or underway to address others. Of the 12 recommendations we made, DHS has fully implemented seven of them and has actions planned or underway to address three others. The remaining two recommendations we closed as not implemented.

[4]For the purposes of this report, "personal property" refers to personal belongings found on the individual's person or carried by them upon entry into the U.S. It does not include contraband or property otherwise subject to seizure.

[5]Along the southwest border, Border Patrol divides responsibility for border security operations between ports of entry geographically among nine sectors spanning four states. Each Border Patrol sector is further divided into varying numbers of stations. Similarly, OFO administers ports of entry along the southwest border through four field offices.

[6]Border Patrol can hold individuals at stations or temporary facilities called soft-sided facilities. Short-term holding facilities are designed to accommodate stays of no longer than 72 hours. Soft-sided facilities are temporary facilities designed to provide additional processing capacity for Border Patrol. The 12 Border Patrol short-term holding facilities that we visited consisted of five soft-sided facilities and seven stations.

ports of entry but provides insight into the implementation of CBP's property handling-related policies and procedures. For those Border Patrol sectors we did not visit in-person and for all OFO field offices along the southwest border, we requested information on their policies and processes for handling personal property.

To address our first objective, we reviewed CBP documents, such as guidance and policies developed by headquarters and field-level leadership for handling personal property, including the National Standards on Transport, Escort, Detention, and Search (TEDS).[7] We assessed how CBP develops, implements, and communicates policies regarding personal property against CBP guidance documents and *Standards for Internal Control in the Federal Government.*[8] Specifically, we analyzed CBP's efforts against the principles related to implementing control activities through policies and communicating policies and procedures to external parties. We further assessed these actions against TEDS and Border Patrol and OFO-specific guidance issued by each component's headquarters office. In addition, we interviewed officials from the Office of Refugee Resettlement within the Department of Health and Human Services to obtain information on how CBP transfers the property of unaccompanied children when they are referred to Department of Health and Human Services custody.[9]

We also interviewed officials responsible for developing policies related to the handling of personal property, such as Border Patrol and OFO headquarters officials and officials in sectors and field offices. During these interviews, we discussed the development and implementation of policies regarding personal property and the processes for handling personal property in Border Patrol facilities and stations and OFO ports of entry.

In addition, we interviewed representatives from six nongovernmental organizations to discuss their experiences with how individuals' property

[7]U.S. Customs and Border Protection, *National Standards on Transport, Escort, Detention, and Search*. (Washington, D.C., Oct. 2015).

[8]GAO, *Standards for Internal Control in the Federal Government*, GAO-14-704G (Washington, D.C.: Sept. 10, 2014).

[9]CBP refers unaccompanied children to the custody of the Office of Refugee Resettlement within the Department of Health and Human Services. Unaccompanied children in the custody of any federal department or agency, including CBP, must be transferred to the Office of Refugee Resettlement within 72 hours after determining that they are unaccompanied children, except in exceptional circumstances. 8 U.S.C. § 1232(b)(3).

is handled. We selected these entities based on various factors, such as whether they serve individuals recently released from CBP custody, have done advocacy work related to personal property, or if they were identified by other nongovernmental or DHS officials. The information we obtained from these interviews is not generalizable, but it provided important perspectives from nongovernmental organizations on how CBP handles personal property.

To address our second objective, we reviewed reports produced by oversight offices such as the DHS Office of the Inspector General and the Office of the Immigration Detention Ombudsman. We also requested data from four DHS offices that receive complaints regarding the handling of personal property: the DHS Office of the Inspector General, the DHS Office for Civil Rights and Civil Liberties, the DHS Office of the Immigration Detention Ombudsman, and the CBP Office of Professional Responsibility. The Office of the Inspector General noted that it did not maintain data to provide complaints specific to the handling of personal property. The other three offices provided data to us but noted that there are likely duplicative records across data systems, among other caveats, which we discuss later in this report.

We obtained and analyzed data on complaints related to personal property that the offices received from the first half of fiscal year 2023—October 1, 2022, through March 31, 2023—as that was the most recent data available at the time of our review. The three offices provided data on the number and type of complaints by querying their data systems for complaints coded as relating to property. In cases where a record listed a different topic as the primary complaint and property as a secondary concern, the records were not included in the data sets. To determine the reliability of the complaint data, we reviewed relevant documentation, interviewed agency officials, and conducted manual testing. We determined that each set of complaints data were sufficiently reliable for the purposes of describing the number of property-related complaints each office received and common focus areas of the complaints. We interviewed officials from these offices regarding their complaint processes, how data are collected and maintained, and any analyses they conducted of these data.

We conducted this performance audit from January 2023 to April 2024 in accordance with generally accepted government auditing standards. Those standards require that we plan and perform the audit to obtain sufficient, appropriate evidence to provide a reasonable basis for our findings and conclusions based on our audit objectives. We believe that